

Prabath Kr. Verma @ Prabath Kumar Verma vs Anita Verma on 10 February, 2022

Bench: Shree Chandrashekhar, Ratnaker Bhengra

IN THE HIGH COURT OF JHARKHAND AT RANCHI
(Civil Appellate Jurisdiction)
First Appeal No. 161 of 2017

[Against the judgment dated 18th May 2017 and the decree dated 27 th May 2017 passed by the learned Addl. Principal Judge, Addl. Family Court, Dhanbad in Title Original Suit No. 99 of 2016]

Prabath Kr. Verma @ Prabath Kumar Verma, s/o Arjun Prasad
Verma, r/o Manaitand SBI Colony, PO & PS-Dhansar, Distt.-
Dhanbad, Jharkhand ... Appellant
Versus

Anita Verma, d/o Parmeshwar Prasad, w/o Prabath Kumar Verma,
r/o Gorkhara Langal Para, Behind Milan Club, Sonarpur, PO & PS-
Sonarpur, Distt.-Kolkata (W.B.) Respondent

(Heard through V.C on 10th February 2022)

CORAM: HON'BLE MR. JUSTICE SHREE CHANDRASHEKHAR
HON'BLE MR. JUSTICE RATNAKER BHENGRA

For the Appellant : Mr. Suraj Singh, Advocate
For the Respondent : Ms. Talat Parween, Advocate

ORDER

10th February 2022 Per, Shree Chandrashekhar, J.

The husband is aggrieved of the judgment dated 18th May 2017 passed in Title Original Suit No. 99 of 2016 by which the suit was dismissed.

2. The appellant is seeking setting aside of the judgment dated 18th May 2017 and the decree prepared, sealed and signed on 27th May 2017 in Title Original Suit No. 99 of 2016.

3. This First Appeal was admitted for hearing by an order dated 15th January 2020 and the lower Court records have been placed before us.

4. The proceedings in Title Original Suit No. 99 of 2016 disclose that summons was issued to the respondent on 22nd November 2016 and substituted service by publication was ordered on 28th November 2016. The order dated 13th January 2017 records that summons against the respondent was published in daily newspaper "Prabhat Khabar", Koklata Edition, on 14 th December 2016. The

suit was set ex-parte against the respondent by an order dated 16th February 2017 and the appellant filed his evidence on affidavit on 20th March 2017.

5. The appellant pleaded that his marriage was solemnized with the respondent on 18th April 1996 and the couple lived as husband and wife at Dhanbad. From the wedlock two sons were born but behaviour of the respondent was violent and cruel during her stay in the matrimonial home. She used to taunt his family members as beggars and threatened to implicate them in a false criminal case. As per the plaint averments, the wife started living separately from 20th December 2008 and inspite of the best efforts taken by the husband she refused to join him in the matrimonial home. According to the appellant, the cause of action for instituting the suit arose on 18th April 1996.

6. Mr. Suraj Singh, the learned counsel for the appellant, submits that the various acts of cruelty inflicted by the respondent upon the appellant and his family members are not controverted by the respondent during trial of Title Original Suit No. 99 of 2016 and moreover the wife deserted the appellant without any reasonable cause or excuse and therefore the appellant was entitled for a decree of divorce by dissolution of marriage on the ground of cruelty under section 13 (1) (ia) of the Hindu Marriage Act, 1955.

7. Ms. Talat Parween, the learned counsel, appears for the respondent.

8. The appellant in his evidence on oath has stated thus;

"4. ;g fd 'kknh ds ckn tSls gh esjh iRuh llqjky vk;h mldk O;ogkj esjs izfr ,oa esjs ifjokj okyksa ds izfr vPNk ugha jgkA

5. ;g fd esjh iRuh ges'kk eq>s rFkk esjs ekrk firk dks xkyh xykSt djrh Fkh rFkk viuk T;knkrj le; vius ek;ds esa gh jgrh FkhA eSa viuh iRuh ls 30-12-2008 ls vyx jgk jgk gwiA

6. ;g fd esjh iRuh dk O;ogkj esjs ifjokj okyksa ds izfr vPNk ugha gS og vDlj dgrh Fkh fd rqe yksx Hkh[keax¢ gksA eSa rqEgkjs ?kj esa rqEgkjs lkFk ugha jgwixhA"

English Translation:

"(4) That, as soon as my wife came to matrimonial house after marriage her behaviour towards my family members and me was not good.

(5) That, my wife always abused my parents and me and most of the time she lived at her paternal house. I am living separately from my wife since 30.12.2008. (6) That, the behaviour of my wife is not good towards my family members and she used to call us beggar. I will not live with you at your residence."

9. A bare glance at the aforesaid evidence of the appellant would disclose that no specific instance of misbehaviour, misconduct, abuse etc. committed by the respondent has been stated by the

appellant. The expression cruelty which is a ground for dissolution of marriage under section 13 of the Hindu Marriage Act has been interpreted to mean such unjustifiable conduct of a spouse as to cause danger to life, limb or health, bodily or mental, or as to give rise to a reasonable apprehension of such a danger. The question of mental cruelty has to be considered in the light of the norms of marital ties of the particular society to which the parties belong and their social values, status and environment in which they live. We are of the opinion that during the trial the appellant failed to tender evidence much less sufficient evidence to establish cruelty on the part of his wife as envisaged under Clause (ia) to sub-section (1) of section 13 of the Hindu Marriage Act.

10. The contention raised on behalf of the appellant that in absence of cross-examination of the appellant and any evidence to the contrary his statement made on oath must be taken as true and sufficient to grant a decree of divorce is without any substance. It is a cardinal principle in law that even in ex-parte proceedings the Court is required to examine evidence of the plaintiff whether on a preponderance of probability relief can be granted to the plaintiff. In such proceedings, the Courts render judgment on the basis of worth of legally admissible evidence tendered by and on behalf of the plaintiff. In our opinion, statement of the appellant - without any detail and corroboration - that attitude of his wife was not good or that she was abusive towards him and his parents or that she was staying with her parents for most of the time are not sufficient to arrive at a conclusion that the aforesaid acts of the wife amounted to cruelty as envisaged under Clause (ia) to sub-section (1) of section 13 of the Hindu Marriage Act.

11. We may further indicate that under section 23 of the Hindu Marriage Act a legal duty is cast upon the Court to record its satisfaction before granting any relief that there has not been any unnecessary or improper delay in instituting the proceeding. As we have noticed, according to the appellant the cause of action arose on 18th April 1996 but there is no explanation by him why he instituted the suit in 2016.

12. For the aforesaid reasons, we do not find any merit in the present First Appeal and, accordingly, First Appeal No. 161 of 2017 is dismissed.

13. In the end, we may record that the learned counsels appearing for the parties have stated that there is a kind of compromise between the parties under which the appellant has started visiting his children who are living with their mother but the wife is reluctant to agree for divorce. We may only indicate that the parties, if so advised, may explore possibility of amicable settlement of their disputes for which this Court took steps on 26 th September 2019.

(Shree Chandrashekhar, J.) (Ratnaker Bhengra, J.) Jharkhand High Court, Ranchi Dated : 10th February 2022 sudhir/N.A.F.R